

UFW Foundation, et al. v. The County of Kern, et al.
Case No. CU24-03274

- (1) Petitioners/Plaintiffs' Motion for Leave to File a First Amended Petition and Complaint; AND**
(2) Petitioners/Plaintiffs' Motion to Compel Further Responses and Production from County Respondents and for Sanctions

TENTATIVE RULING

Petitioners/Plaintiffs' Motion for Leave to File a First Amended Petition and Complaint

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1).) "This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.) However, the policy in favor of liberal allowance of amendments does not apply "[w]here inexcusable delay and probable prejudice to the opposing party is indicated." (*Estate of Murphy v. Gulf Ins. Co.* (1978) 82 Cal.App.3d 304, 311.) Leave to amend may be denied where the proposed pleading fails to state a cause of action and further amendment would be futile (see *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230-231), but "the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." (*Kittredge Sports Co., supra*, 213 Cal.App.3d at p. 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 ["the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings."].)

The motion complies with California Rules of Court, rule 3.1324. As far as substance, Judicial Defendants argue that the proposed amendment is futile. However, as discussed, the better course is to permit the amendment, and to allow the parties to test its legal sufficiency by demurrer or other appropriate proceedings. (See *Kittredge Sports Co., supra*, 213 Cal.App.3d at p. 1048; *Atkinson, supra*, 109 Cal.App.4th at p. 760.) Thus, the Court declines to consider Judicial Defendants' substantive challenges to the validity of the amended common law taxpayer claim at this stage of the proceedings. As there has been no showing of inexcusable delay and prejudice to Respondents/Defendants by the amendment, the Court concludes the liberal policy favoring amendment counsels in favor of granting Petitioners' leave to file their amended pleading.

Accordingly, the motion for leave to file a First Amended Petition and Complaint is GRANTED.

Judicial Defendants' request for a stay is DENIED.

Petitioners/Plaintiffs' Motion to Compel Further Responses and Production from County Respondents and for Sanctions

The Court does not have a tentative ruling. The parties shall be prepared to discuss all outstanding discovery issues.

“[T]here is a strong public policy favoring settling of disputes.” (*Kaufman v. Goldman* (2011) 195 Cal.App.4th 734, 745.) Over three years have elapsed since the case was first filed, during which considerable funds and resources have been expended on ongoing technical, procedural, and discovery battles. The Court continues to believe that wise legal minds, in deference to the substantive and fiscal needs of the community, could and should be engaged in proactive, meaningful efforts to resolve these disputes. The Court again urges the parties to demonstrate to their community that intelligent engagement and compromise, guided by the needs of the community, provide a better path forward than continued legal battles and expense.